# Shri Narayan Diwakar vs Central Bureau Of Investigation on 23 January, 2006

## Equivalent citations: 2006CRILJ4103, 127(2006)DLT789, 2006 CRI. L. J. 4103, (2006) 41 ALLINDCAS 708 (DEL), 2006 (41) ALLINDCAS 708, 2006 (55) ALLCRIC 28 SOC, (2006) 3 RECCRIR 446, (2006) 1 CHANDCRIC 318, (2006) 127 DLT 789

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## Bench: J.P. Singh

ORDER

J.P. Singh, J.

1. This petition under Section 482 of the Code of Criminal Procedure has been filed for quashing of warrants of arrest dated 21.12.2005 or NBWs issued pursuant to the order dated 21.12.2005 by the court of Special Judge (CBI) in RC No. 9(E)/2005/EOW-I/DLI dated 29.7.2005 in the case of TAJ Cooperative Group Housing Society.

2. I have heard Mr. R.K. Anand, Sr. Adv. learned counsel for the petitioner and Mr. Harish Gulati learned counsel for the CBI and have gone through the contents of the petition.

3. It is submitted on behalf of the petitioner that the petitioner worked as Registrar Cooperative Societies (RCS) Delhi and in that capacity also passed orders. His orders were appealable before the Finance Commission. It is argued that he enjoyed immunity from prosecution or inquiry because he passed judicial orders. During his tenure as Registrar Co-operative Societies he revived some defunct societies because of which FIRs have been registered and he is facing investigation and is apprehending arrest.

4. Learned counsel for the respondent has submitted that the High Court of Delhi while hearing a Civil Writ Petition directed the CBI to register FIRs and to carry out investigation about genuineness of membership of 135 Co-operative Group Housing Societies. During investigation it was found that some persons including the petitioner had joined hands with land mafia and gave fake names of the members for the defunct societies and accordingly the said societies were revived by the petitioner and either the land was allotted or was to be allotted to the land mafia. These so-called societies were virtually highjacked by the land mafia and no genuine public member was going to be benefited. Crores of rupees of black money was allegedly generated. It is alleged that the petitioner

played an active role in this entire scam.

5. The petitioner is named in 66 FIRs. The matter is under investigation. The petitioner had been joining investigation but then disappeared and was not responding to repeated notices under Section 160 Cr.P.C. Therefore, an application was moved by the IO before the Special Judge, CBI. After giving the introductory facts and details about the planning and the conspiracy the concluding para of the application is as under:

> Hence, N.Diwakar had been telephonically called to attend CBI office on 12.12.2005 which was received by his relative. However, a call from N.Diwakar was received stating that he is out of station and would join investigation on 14.12.2005. As he appeared to be avoiding investigation, on the same day he was issued a notice under Section 160 Cr.P.C. to appear on 13.12.2005 which was received by his servant. In response to the receipt Sh. Diwakar had called up over phone and agreed to be present on 13.12.2005. However, he did not appear on 13.12.2005. Another notice under Section 160 Cr.P.C. was also issued on 15.12.2005 but the same could not be served as the house was found locked. He was once again issued a notice for appearance on 16.12.2005 which was served on his son Sanjay Diwakar. In reply a letter had been received from Sanjay Diwakar that his father was out of station. It appears that Sh. Diwakar is trying to evade the investigation and is not cooperating to bring the investigation to a logical conclusion. It is, therefore, requested that Non Bailable Warrants may be issued against accused N.Diwakar so that he may be arrested and necessary investigation can be made with him.
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> It is, therefore, prayed that Non Bailable Warrants may kindly be issued for the arrest of N.Diwakar in the interest of this case.
>
> Submitted please.
>
> Sd/-

6. As regards the immunity, it is established law that no public servant while discharging his duties can indulge in crime which is definitely not a part of his duties. There are allegations of conspiracy and fraud against the petitioner and co-accused persons and the investigation has been conducted on the directions of the High Court . Therefore, prima facie, I do not find merits on the "sanction" aspect of the arguments.

7. Learned counsel for the petitioner has cited the case titled State through CBI v. Dawood Ibrahim and Ors. in support of his contentions against the issue of NBWs by the Special Judge (Additional Sessions Judge). This case relates to what is known as Bombay Serial Bomb Blasts case. In that case after completion of investigation charge sheet was filed in the designated court. The court took cognizance of the offences. A few days thereafter the investigation was entrusted to the CBI who undertook further investigation and then moved an application before the designated court stating that on disclosure by some of the accused persons more persons were found to be involved,but they

were evading arrest and prayed for issuance of NBWs of arrest against the said persons. The designated court opined that after cognizance is taken in respect of an offence, process could be issued to the accused thereof only to compel them to face the trial but no such process could be issued by the court in aid of investigation under section 73 of the Code. Aggrieved the State filed appeal. The Supreme Court of India after discussing the law finally opined as under:-

> Now that we have found that Section 73 of the Code is of general application and that in course of the investigation a Court can issue a warrant in exercise of power there under to apprehend, inter alia, a person who is accused of a non-bailable offence and is evading arrest, we need answer related question as to whether such instance of warrant can be for his production before the police in aid of investigation. It cannot be gainsaid that a Magistrate plays, not infrequently, a role during investigation, in that, on the prayer of the Investigating Agency he holds a test identification parade, records the confession of an accused or the statement of a witness, or takes or witnesses the taking of specimen handwritings etc. However, in performing such or similar functions the Magistrate does not exercise judicial discretion like while dealing with an accused of a non-bailable offence who is produced before him pursuant to a warrant of arrest issued under Section 73. On such production, the Court may either release him on bail under Section 439 or authorise his detention in custody (either police of judicial) under Section 167 of the Code. Whether the Magistrate, on being moved by the Investigating Agency, will entertain its prayer for police custody will be at his sole discretion which has to be judicially exercised in accordance with Section 167(3) of the Code. Since warrant is and can be issued for appearance before the Court only and not before the police and since authorisation for detention in police custody is neither to be given as a matter of course nor on the mere asking of the police, but only after exercise of judicial discretion based on materials placed before him, Mr. Desai was not absolutely right in his submission that warrant of arrest under Section 73 of the Code could be issued by the courts solely for the production of the accused before the police in aid of investigation.

8. With these observations the appeals of the state were allowed and order of the designated court was set aside. This judgment, therefore, does not help the petitioner. Even otherwise the judgment is not attracted in the present case because there are 66 FIRs against the petitioner. Matters are under investigation. Challans have not been filed and cognizance of offences has not been taken by the Special Judge, whereas in the cited case cognizance of offence had been taken by the designated court, even then the Supreme Court has held that NBWs could be issued by the designated court.

9. Considering all the facts and circumstances, I do not find any justification for interference under Section 482 of the Code of Criminal Procedure. The petition is, therefore, dismissed.